



CHAPTER 21.

An Act to amend the Dogs Act, 1871.

A.D. 1938.

[13th April 1938.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Where an order is made by a court of summary jurisdiction under section two of the Dogs Act, 1871, directing a dog to be destroyed, the owner of the dog may appeal to a court of quarter sessions.

Amend-
ment of
s. 2 of
34 & 35
Vict. c. 56.

(2) Upon any such order as aforesaid being made by a court of summary jurisdiction, then, unless the owner of the dog gives notice to that court that he does not intend to appeal, the order shall, until after the determination of the appeal or until the appeal can no longer be prosecuted under the Summary Jurisdiction Acts, as the case may be, have effect as if it had been an order under the said section two directing the dog to be kept by the owner under proper control.

2.—(1) This Act may be cited as the Dogs Amendment Act, 1938.

Short title,
extent and
application
to Scotland.

(2) This Act shall not extend to Northern Ireland.

A.D. 1938.

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(3) In the application of this Act to Scotland, section one shall have effect as if—

(a) for subsection (1) the following subsection were substituted:—

“(1) Where an order is made by a court of summary jurisdiction under section two of the Dogs Act, 1871, directing a dog to be destroyed, the owner of the dog shall have the like right of appeal as if the order were a conviction”;

and

(b) in subsection (2) for the words “appeal can no longer be prosecuted under the Summary Jurisdiction Acts” there were substituted the words “expiry of the period specified in section sixty-one of the Summary Jurisdiction (Scotland) Act, 1908.”

8 Edw. 7.
c. 65.

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